

North Coast Regional Water Quality Control Board

October 3, 2014

In the Matter of

**Notice of Applicability, General Waste Discharge Requirements for the
Discharge of Biosolids to Land for Use as a Soil Amendment in
Agricultural, Silvicultural, Horticultural, and Land Reclamation Activities
(State Water Resources Control Board, Water Quality Order No. 2004-0012-DWQ)
for
LAGUNA SUBREGIONAL WASTEWATER TREATMENT PLANT
WDID NO. 1B06065RSON**

APPLICANT: City of Santa Rosa
RECEIVING PROPERTY: Stone Farm
COUNTY: Sonoma County
FILE NAME: City of Santa Rosa – Stone Farm

BY THE EXECUTIVE OFFICER:

1. This Notice of Applicability provides coverage of the application of biosolids under Water Quality Order No. 2004-0012-DWQ (General Order) adopted by the State Water Resources Control Board (State Water Board) on July 22, 2004. The General Order provides Waste Discharge Requirements for the discharge of biosolids to land for use as a soil amendment in agricultural activities.
2. On August 22, 2014, the City of Santa Rosa (or Permittee) submitted a Pre-Application Report prepared by the city of Santa Rosa, titled *City of Santa Rosa Subregional Utilities, 2014, Biosolids Pre-Application Report For Stone Farm* (Report) to the North Coast Regional Water Quality Control Board (Regional Water Board). The Report accompanied a Notice of Intent (NOI) for coverage under the General Order, an

application fee of \$4,367.00 (for a project with a Category “III” threat to water quality and a Category “b” complexity rating), and supporting documentation submitted on October 1, 2014 (jointly Application). According to the Report, the proposed project is land application of biosolids, generated at the Laguna Subregional Wastewater Treatment Plant, 4300 Llano Road, Santa Rosa, CA 95407, to agricultural areas owned by and under the control of the Permittee (Project).

3. Biosolids are defined as sewage sludge that has been treated and tested and shown to be appropriate for the beneficial and legal use as soil amendment for agriculture, silviculture, and land reclamation activities as specified under U.S. EPA’s Biosolids Rule (40 CFR Part 503). For the purpose of the General Order, biosolid material does not include domestic septage, commercial or industrial waste, or grit and screenings from wastewater treatment facilities.
4. The Permittee operates a wastewater treatment facility (WWTF) serving the city of Santa Rosa located at 4300 Llano Road, Santa Rosa, CA 95407. The WWTF is currently regulated under Order No. R1-2013-0001, Waste Discharge Requirements, adopted by the Regional Water Board on November 21, 2013.
5. The biosolids have been sampled, characterized, and classified in accordance with 40 CFR Part 503.
6. The Permittee is proposing to land apply biosolids on zoned agricultural land. The application site is located at Stone Farm, 5750 Occidental Road in Santa Rosa, North of the WWTF, and is identified on the attached maps (Attachment). Biosolids will be hauled to the application site and up to 800 dry tons will be applied per year. The application of biosolids at the proposed application rate is not expected to exceed the nitrogen demand of the animal feed crop (rye grass) being grown. The biosolids have been demonstrated to meet Class B pathogen standards with regard to pathogen reduction. Class B vector attraction reduction standards will be met through the incorporation of biosolids into application site soils.
7. Biosolids containing heavy metals can cause groundwater pollution, toxicity to plants and soil microorganisms, buildup in plant tissues, and surface water pollution through surface runoff and migration of groundwater. Application rates for heavy metals and biosolids management requirements have been established in the General Order to minimize these problems. Results of monitoring of the Permittee’s biosolids and application site soils indicate concentrations of metals well below allowable levels. The Permittee proposes to implement best management practices (BMPs) designed to avoid and minimize adverse impacts to waters of the State and United States.
8. The Laguna de Santa Rosa is currently listed for pathogens, nutrients and sediment impairments. The BMPs to ensure biosolids application at Stone Farm will not contribute to the impairment of the Laguna de Santa Rosa include but not be limited

to application of biosolids to agricultural lands at or below the agronomic rates for nutrients, setbacks to surface waters, wells, and vegetated buffer zones.

9. The Permittee has demonstrated to the satisfaction of the Regional Water Board that the Project meets the minimum standards set in the General Order and baseline requirements of the 40 CFR Part 503 and is suitable for regulation under the General Order and the corresponding California Environmental Quality Act (CEQA) document.
10. The Permittee has developed an Emergency Spill Plan to mitigate potential nuisance and traffic safety conditions that might arise in the event of a spill of biosolids during transport.
11. The State Water Board, as the lead CEQA agency, adopted mitigated Environmental Impact Report No. 99062108 for the General Order on July 22, 2004, in accordance with CEQA.

ACCORDINGLY, BASED ON ITS INDEPENDENT REVIEW OF THE RECORD, THE REGIONAL WATER BOARD CERTIFIES THAT THE LAGUNA SUBREGIONAL WWTF STONE FARM BIOSOLIDS LAND APPLICATION PROJECT (WDID NO. 1B06065RSON), as described in the Application, is hereby covered under the General Order, provided that the Project complies with the following terms and conditions:

1. This Notice of Applicability (NOA) is contingent on compliance with all applicable requirements of the North Coast Region Water Quality Control Plan (Basin Plan), except as modified hereinafter by the specific conditions of the NOA.
2. The Project meets the eligibility criteria for the General Order. The Project shall be conducted as described in the Application and in compliance with the General Order and the modified conditions in this NOA.
3. In accordance with Provision D.5 of the General Order, the Permittee is to submit copies of the NOI to the appropriate regional office(s), the Department of Fish and Wildlife, local water district, City Planning Department, County Health Department(s), and County Agricultural Commissioner(s) with jurisdiction over the proposed application sites. In addition, the Permittee has notified the adjacent property owners with parcels abutting the land application sites and, where applicable, tenants. Proof of this notification of agencies is required to be submitted to our office prior to initiation of the land application activities.
4. In accordance with Prohibition A. 14 of the General Order, the land application of Class B biosolids containing a moisture content of less than 50% is prohibited. This condition is intended to prevent any potential for increased incidence of human exposure to aerosols and wind-blown particulates originating from the biosolids. Prior to the proposed ongoing land application of the Class B biosolids by the

Permittee the moisture content of the biosolids must be demonstrated to be at 50% or less. The moisture content of the biosolids immediately before land application shall be included in the Monitoring and Reporting Program Annual Report.

5. Upon project completion, the Permittee shall submit a Notice of Termination of coverage under the General Order.
6. The following list partially highlights selected standard prohibitions and provisions from the General Order:
 - a. The storage, transport, or application of biosolids shall not cause a nuisance, as defined in section 13050 of the California Water Code (Water Code).
 - b. There shall be no discharge of biosolids to land not regulated by this General Order, to surface waters, or to surface water drainage courses.
 - c. The discharge of tail water or field runoff is prohibited within 30 days after the application of biosolids for areas where biosolids have not been incorporated into the soil and where there is not a minimum of 33 feet of unmowed grass or similar vegetation bordering the application area and along the path of runoff to prevent movement of biosolids particles from the application site.
 - d. There shall be no application of biosolids to water-saturated ground, or during periods of precipitation that induces runoff from the application site.
 - e. Grazing of domesticated animals at sites where biosolids applications have occurred shall be deferred for at least 60 days after application of biosolids.
 - f. Application of biosolids in excess of the nitrogen requirements of the vegetation, or at rates that would degrade groundwater is prohibited.
 - g. There shall be no biosolids storage on site for more than seven (7) consecutive days prior to application. Biosolids shall be considered stored if they are placed on the ground or in non-mobile storage containers at the application site or at an intermediate storage location away from the generator/processing location for more than 48 hours.
 - h. Biosolids containing free liquids shall not be placed on the ground prior to application on an approved site, excluding equipment cleaning operations.
 - i. The Permittee shall allow the Regional Water Board or an authorized representative upon the presentation of credentials, valid identification with photograph, and other documents as may be required by law to:

- i. Enter upon the Permittee's premises where a regulated facility or activity is located or conducted or where records must be kept under the conditions of the General Order;
 - ii. Have access to and copy, at reasonable times, any records that must be kept under the conditions of the General Order;
 - iii. Inspect at reasonable times any facilities, equipment (including monitoring and control equipment), practices, or operations regulated or required under the General Order; and
 - iv. Sample or monitor at reasonable times, any substances or parameters at any location for the purposes of assuring compliance with the General Order or as otherwise authorized by the Water Code.
- j. The Permittee shall comply with the Monitoring and Reporting Program included as part of the General Order and any plans required and contained within, and any revisions thereto.
- k. The Permittee is responsible for site operations and shall retain primary responsibility for compliance with these requirements, including day-to-day operations, monitoring, crop selection and any access or harvesting restrictions resulting from biosolids application. As the owner of the real property at which the discharge will occur the Permittee is ultimately responsible for ensuring compliance with these requirements. Enforcement actions for violations of the General Order may be taken against the Permittee for failure to comply with the General Order.
- l. All instances of noncompliance that may endanger health of the environment shall be reported orally to the Regional Water Board as soon as possible, but no later than two hours from the time the Permittee becomes aware of the circumstances, and a written report shall be submitted and received by the Regional Water Board no later than five days after the event.
- m. All reports required by the General Order or other information required by the Regional Water Board, or the State Water Board shall be signed by the principal executive officer or a duly authorized representative of that person. Any person signing a document under this requirement shall make the following certification:

"I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information

submitted, is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations."

7. Please be aware that a failure to implement the Project according to the project description in the Application, or violation of any of the conditions and terms contained in this NOA, may result in the revocation of coverage under the General Order and the initiation of formal enforcement proceedings as authorized by provisions of the Water Code.

Please contact Lisa Bernard of our staff at (707) 576-2677 or Lisa.Bernard@waterboards.ca.gov, if you have any questions.

Original Signed By David Leland For

Matthias St. John
Executive Officer

October 3, 2014

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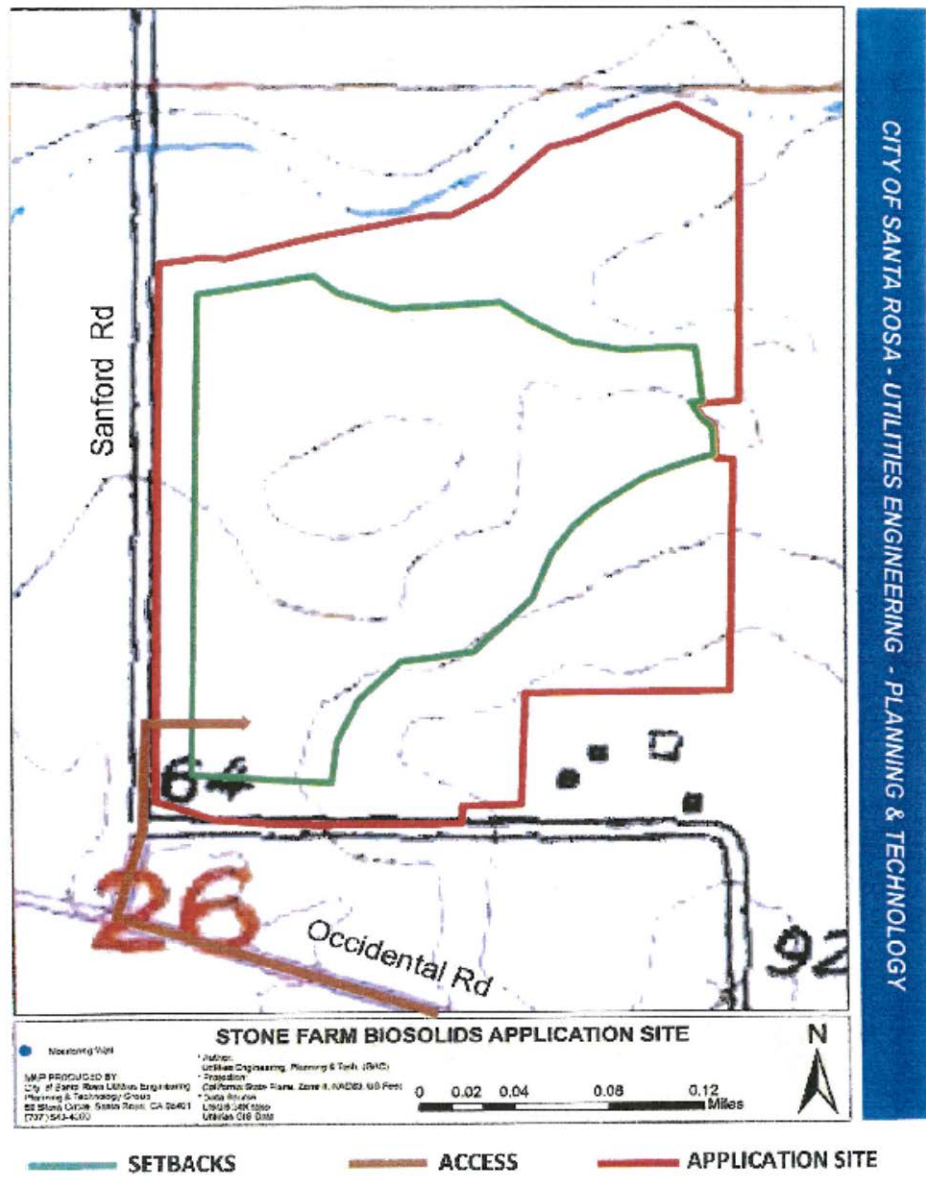
Attachment: City of Santa Rosa, Biosolids Land Application Site at Stone Farm

Weblink: State Water Resources Control Board Order No. 2004-0012 -DWQ, General Waste Discharge Requirements for the Discharge of Biosolids to Land for Use as a Soil Amendment in Agricultural, Silvicultural, Horticultural, and Land Reclamation Activities can be found at:
http://www.waterboards.ca.gov/board_decisions/adopted_orders/water_quality/2004/wqo/wqo2004-0012.pdf

Original to: Zachary Kay, Biosolids Coordinator, Laguna Subregional WWTF, 4300 Llano Road, Santa Rosa, CA 95407, ZKay@srcity.org

cc: Sean McNeil, Environmental Specialist, City of Santa Rosa Utilities Department, smcneil@srcity.org

Attachment A



141003_LMB_ef_BPG_CitySrStoneFarm_AttachmentA